

Shriram & Ors. vs Lakhan Lal & Anr. on 20 March, 2017

SA-31-2002

(SHRIRAM & ORS. Vs LAKHAN LAL & ANR.)

20-03-2017

Shri Imtiyaz Hussain, learned counsel for the appellants.

Heard on admission.

The appeal is admitted on the following substantial questions of law:-

1. Whether the First Appellate Court was legally justified in holding that the plaintiff/respondent no.1 is entitled to get 1/5 share in the

ancestral property falling to the share of defendant/appellant no.1 in partition, specifically when it is held that the suit properties are ancestral properties and the plaintiff/respondent no.1 is legitimate son of the defendant/appellant no.1 for the limited purposes of Section 16 of the Hindu Marriage Act, 1955 ?

2. Whether the findings and decree of the First Appellate Court are against the very provisions of Section 16 of the Hindu Marriage Act, 1955 ?

Issue notice of this appeal alongwith the copy of substantial questions of law framed to respondent no.1 on payment of process fee within one week, both by ordinary as well as registered A/D modes. Notices be made returnable within four weeks.

(SMT. ANJULI PALO) JUDGE rj